

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4100
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. City, town or private water providers; central
3 Arizona project subcontracts; rates; notice;
4 delayed repeal

5 A. On or before April 15, 2026, each ~~[municipal provider]~~ [city,
6 town or private water provider that provides potable water to customers in
7 the Phoenix, Tucson or Pinal active management areas and] that receives or
8 has an allocation of water from the central Arizona project pursuant to a
9 subcontract with the central Arizona water conservation district organized
10 under title 48, chapter 22, Arizona Revised Statutes, or that receives or
11 has an allocation of water from the central Arizona project pursuant to a
12 lease with another person or subcontract with the central Arizona water
13 conservation district shall do both of the following:

14 1. Estimate the total cost per acre-foot of securing, treating and
15 delivering an alternative water supply if one hundred percent of the water
16 ~~that [is acquired or leased]~~ [the city, town or private water provider
17 receives] directly or indirectly from the central Arizona project is no
18 longer available.

19 2. Provide [written] public notice to each customer of the
20 potential increase in rates resulting from losing one hundred percent of
21 the water that ~~[is acquired or leased]~~ [the city, town or private water
22 provider receives] directly or indirectly from the central Arizona
23 project. The notice shall be in substantially the same form and manner as
24 the public notices required of public service corporations in rate cases
25 by the corporation commission and shall include the following information:

26 (a) The potential revenue increase levels for each customer class,
27 in percent.

1 (b) The potential monthly bill increase for a typical residential
2 water customer that are served by a five-eighths inch meter with an
3 average monthly usage.

4 (c) The typical current bill, potential bill, potential dollar
5 increase and potential percentage increase.

6 B. On or before April 15, 2026, a ~~[municipal provider]~~ [city, town
7 or private water provider] that is subject to this section shall do all of
8 the following:

9 1. Mail to each of its customers in each affected service area a
10 copy of the notice required pursuant to this section as a bill insert or
11 as a separate mailing.

12 2. Cause a copy of the notice required pursuant to this section to
13 be published at least once in a newspaper of general circulation in each
14 affected service area.

15 3. Post a copy of the notice required pursuant to this section in a
16 prominent location on its website.

17 C. This section is repealed from and after December 31, 2026.

18 ~~[D. For the purposes of this section, "municipal provider" has the~~
19 ~~same meaning prescribed in section 45-561, Arizona Revised Statutes.]~~

20 Sec. 2. Emergency

21 This act is an emergency measure that is necessary to preserve the
22 public peace, health or safety and is operative immediately as provided by
23 law.

24 Enroll and engross to conform

25 Amend title to conform

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